

Ram Prakash Gupta v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 6 January 2012 · WRIT - C No. - 565 of 2012 · **Writ disposed of; petitioner relegated to Supply Code bill complaint.**

HEADNOTE

A consumer objecting to an electricity bill issued after a check that supply was used for commercial purposes must make an appropriate complaint under the U.P. Electricity Supply Code, 2005; the High Court will not decide such a representation in writ.

FACTUAL SUMMARY

Ram Prakash Gupta petitioned the Allahabad High Court for a direction to decide his representation dated 14 December 2011 objecting to an electricity bill dated 22 November 2011. The bill had been issued after a check concluding that supply was being used for commercial purposes. After hearing counsel for the petitioner and for respondent no. 2, the Division Bench declined to examine the bill on merits and disposed of the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

bill-complaint-remedy

HOLDING

An objection to an electricity bill, including a bill issued on a check that supply is used for commercial purposes, is to be pursued by making an appropriate complaint under the U.P. Electricity Supply Code, 2005; the writ court will not decide such a representation on merits. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy A consumer objecting to an electricity bill issued after a check that supply was used for commercial purposes must make an appropriate complaint under the U.P. Electricity Supply Code, 2005; the High Court will not decide such a representation in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL DATED 22.11.2011 WAS CORRECTLY ISSUED ON THE BASIS THAT ELECTRICITY WAS USED FOR COMMERCIAL PURPOSES

¶ 1